

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
NANCY BAYONA

Plaintiff,

against

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. MANDEEP CHEEMA (TAX REG.
950196/SHIELD NO.: 25433), and P.O. PAUL
WHENDERSON (TAX REG.: 962664/ SHIELD NO.: 6043)

Defendants.
-----X

INDEX NO.:

SUMMONS

Plaintiff designates
Queens County as the
place of trial.

Plaintiff reside in
Queens County, New York.

TO THE ABOVE NAMED DEFENDANTS

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer or if the complaint is not served with this summons to serve a notice of appearance on the Plaintiff's Attorney within 20 days after the service of this summons exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Queens, New York
December 7, 2023



LAW OFFICES OF MICHAEL A. CERVINI
Attorney for Plaintiff
33-12 86th Street
Jackson Heights, NY 11372
(718) 779-8910

Defendant(s) addresses:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza

New York, New York

POLICE OFFICER MANDEEP CHEEMA

1 Police Plaza

New York, New York

POLICE OFFICER PAUL WHENDERSON

1 Police Plaza

New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
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S I R S :

Plaintiff, by her attorney, MICHAEL A. CERVINI, ESQ., complaining of the Defendants herein, states and alleges:

1. That at all times hereinafter mentioned, the plaintiff, NANCY BAYONA, was and still is a resident of the County of Queens, City and the State of New York.
2. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK, is a municipal corporation, authorized to do business within the City and State of New York.
3. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE DEPARTMENT is a municipal corporation, authorized to do business within the City and State of New York.
4. That at all times hereinafter mentioned the defendant, NYCPD OFFICER MANDEEP CHEEMA, was and still is an individual residing in the City and State of New York.
5. That at all times hereinafter mentioned the defendant, NYCPD OFFICER PAUL WHENDERSON, was and still is an individual residing in the City and State of New York.

AS AND FOR A FIRST CAUSE OF ACTION

6. Heretofore and on March 8, 2023 and within ninety (90) days after the claim herein arose, the plaintiffs, duly upon, presented and filed with THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT, notice of claim in writing, in duplicate sworn to by the plaintiff, setting forth:

- a. The name and post office address of each claimant, and of her attorney.
- b. The nature of the claim.
- c. The time when, the place where and the manner in which the claim arose.
- d. The items of damage or injuries claimed to have been sustained so far as then practicable.

7. That the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, have wholly neglected or refused to make adjustments and/or payment there of and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

8. That an oral examination of the Plaintiff pursuant to Section 50-H of the General Municipal Law has been held.

9. That this action has been commenced within one year and ninety days after the cause of action herein arose.

10. That on March 8, 2023, the plaintiff, NANCY BAYONA, was arrested without probable cause and physically attacked by members of the New York City Police Department at or near 132-03 101st Avenue, County of Queens, New York.

11. That the plaintiff sustained physical injuries and psychological injuries and

violation of her civil rights when she was assaulted by police officers under the employment and supervision of the defendants.

12. That said attack on the plaintiff was caused due to the defendants' negligence in the negligent hiring, supervision training and retention of their employees.

13. The defendants were negligent in failing to properly train employees, to supervise employees and to properly retain employees.

14. Said negligence consisted of the failure to provide minimal precautionary safety measures to prevent the arrest and attack from occurring.

15. Plaintiff's statutory and constitutional rights were violated.

16. The defendants had knowledge of their employees' prior propensity in this regard and failed to take proper steps to safeguard the plaintiffs.

17. The defendants were negligent in the hiring and supervision and retention of their employees who arrested and assaulted the plaintiff.

18. The defendants were negligent in the procedures in place at the above location in allowing the plaintiff to be assaulted by the defendants' employees.

19. The defendants' employees were acting within the scope of their actual, implied and apparent authority and in furtherance of their employer's business.

20. The plaintiff was in no position to object.

21. The defendants were negligent in the arrest of the plaintiff on March 8, 2023

22. The arrest was made without probable cause.

23. As a result, the plaintiff was physically and psychological injured; the plaintiff has suffered personal injuries; the plaintiff has suffered loss of dignity and privacy; has become the object of scorn and self-loathing; is afraid to be in the presence of police officers; has become

distrustful of officers and is unable to function as a normal human being and sustained financial loss and incurred medical and psychological bills all to his damage in the sum of ONE MILLION (\$1,000,000.00) DOLLARS.

24. The above acts exceed the jurisdictional limits of the lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

25. Plaintiffs repeat and reiterate each and every allegation contained in paragraphs "1" through "25" as if fully set forth herein.

26. The plaintiff was arrested without probable cause, battered, pushed and beaten on March 8, 2023.

27. Said arrest and battery was intentional and took place based upon excessive force and the defendants had no reason to justify said force.

28. Said battery to the plaintiffs by the defendants was within the scope of their actual, implied and apparent authority as New York City police officers.

29. Said battery took place in furtherance of the defendants' business.

30. As a result, plaintiff was harmed and injured all to his damage in the sum of ONE MILLION (\$1,000,000.00) DOLLARS.

31. The above acts exceed the jurisdictional limits of the lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION

32. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "31" as if fully set forth herein.

33. The defendants falsely arrested and confined the plaintiff.

34. Said arrest and confinement was without plaintiff's consent.

35. Said arrest and confinement occurred without probable cause.

36. Plaintiff was aware of said arrest and confinement.

37. As a result of said arrest, plaintiff has been damaged by being subject to shame, scorn and pity in the community all to his damage in the sum of ONE MILLION (\$1,000,000.00) DOLLARS.

38. The above acts exceed the jurisdictional limits of the lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION

39. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "38" as if fully set forth herein.

40. That on March 8, 2023, the plaintiff, NANCY BAYONA was arrested without probable cause and physically attacked by members of the New York City Police Department at or near 132-03 101st Avenue, County of Queens, New York.

41. That the plaintiff sustained psychological injuries and violation of her civil rights when she was baselessly arrested and assaulted by police officers under the employment and supervision of the defendants.

42. Said negligence consisted of the failure to provide minimal precautionary safety measures to prevent the arrest and attack from occurring.

43. Plaintiff's statutory and constitutional rights were violated by the individual defendants.

44. Defendant, Police Officers MANDEEP CHEEMA and PAUL WHENDERSON, were negligent in the procedures in place at the above location in allowing the plaintiff to be arrested and assaulted.

45. These defendants were acting within the scope of their actual, implied and apparent authority and in furtherance of their employer's business.

46. The plaintiff was in no position to object.

47. The individual defendants were negligent in the arrest of the plaintiff on March 8, 2023.

48. The arrest was made without probable cause.

49. As a result, the plaintiff was physically and psychological injured; has suffered personal injures; loss of dignity and privacy; has become the object of scorn and self-loathing; is afraid to be in the presence of police officers; has become distrustful of officers and is unable to function as a normal human being and sustained financial loss and sustained medical and psychological bills all to his damage in the sum of ONE MILLION (\$1,000,000.00) DOLLARS.

50. The above acts exceed the jurisdictional limits of the lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION

51. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "50" as if fully set forth herein.

52. The plaintiff was arrested, battered, pushed and beaten on March 8, 2023 by Defendants, Police Officers MANDEEP CHEEMA and PAUL WHENDERSON.

53. Said battery was intentional and took place based upon excessive force and these defendants had no reason to justify said force.

54. Said battery to the plaintiff by these individual defendants was within the scope of their actual, implied and apparent authority as New York City police officers.

55. Said battery took place in furtherance of the defendants' business.

56. As a result, plaintiff was harmed and injured all to her damage in the sum of ONE MILLION (\$1,000,000.00) DOLLARS.

57. The above acts exceed the jurisdictional limits of the lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION

58. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "57" as if fully set forth herein.

59. Defendants, New York City Police Officer MANDEEP CHEEMA and New York City Police Officer, PAUL WHENDERSON, arrested and confined the plaintiff.

60. Said arrest and confinement was without plaintiff's consent.

61. Said arrest and confinement occurred without probable cause.

62. Plaintiff was aware of said arrest and confinement.

63. As a result of said arrest, plaintiff has been damaged and is subject to shame, scorn and pity in the community all to their damage in the sum of ONE MILLION (\$1,000,000.00) DOLLARS.

AS AND FOR AN SEVENTH CAUSE OF ACTION

64. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "63" as if fully set forth herein.

65. Defendants, New York City Police Officers, MANDEEP CHEEMA and PAUL WHENDERSON, assisted in the malicious prosecution of the plaintiff.

66. These individual defendants assisted in the commencement and continuation of a criminal proceeding against the plaintiff.

67. That at all times hereinafter mentioned, these individual defendants' actions were intentional, unjustified and without probable cause.

68. As a result, plaintiff has been physically injured, humiliated and shamed in the community all to their damage in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.

AS AND FOR AN EIGHTH CAUSE OF ACTION

69. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "68 " as if fully set forth herein.

70. At all times hereinafter mentioned, the defendant operates and controls an agency known as the New York City Police Department.

71. The plaintiff's basis for jurisdiction 42 U.S.C.A 1983 and 42 U.S.C.A. 1985 (3); U.S. and NYS Constitution and the 4th, 8th and 14th Amendments of the U.S. Constitution.

72. Plaintiff demands a jury trial.

73. That on March 8, 2023, the plaintiff, NANCY BAYONA was arrested without probable cause and physically attacked by members of the New York City Police Department at or near 132-03 101st Avenue, County of Queens, New York.

74. At all times hereinafter mentioned the defendant(s), its employee(s) and/or agents were acting under color of authority as members of the New York City Police Department.

75. At all times hereinafter mentioned the defendant(s), its employee(s) and/or agents subjected the plaintiff(s) to a deprivation of their rights and privileges secured and protected by the Constitution and Laws of the United States and namely the right not to be deprived of the liberty and due process of law, or subjected to unreasonable search; the right to be free from the use of excessive force against their person.

76. At all times hereinafter mentioned, the defendant(s), its employee(s) and/or agents subjected the plaintiff to arrest without due process of law, without probable cause and in violation of the US and NYS Constitution 4th, 8th and the 14th Amendment 42 USCA 1983 and 42 USCA 1985(3).

77. At all times hereinafter mentioned, the defendant(s), its employee(s) and/or agents used unreasonable force against the plaintiff in violation of the US and NYS Constitution, 4th,

8th and 14th Amendment and 42 USCA 1983 and 42 USCA 1985(3).

78. The defendant(s) are guilty of arresting the plaintiff without probable cause in violation of the aforesaid laws.

79. The defendant(s) are guilty of subjecting the plaintiff to an unlawful search in violation of the aforesaid laws.

80. The defendant are guilty of subjecting the plaintiff to the use of excessive force during the arrest in violation of the aforesaid laws.

81. The above acts by the defendant(s) its, employee(s) and/or agents was done under the law with color of law in that the defendant(s), its employee(s) and agents were purporting to act in their official capacity in furtherance of the defendant(s)' business and abused and misused their power as officials of the defendant(s).

82. Such acts would not have occurred but for the employee(s) and agents being officials of the defendant(s).

83. At all times hereinafter mentioned, the defendant(s) through its employee(s) and agents, acting under color of law and in furtherance of their duties, were responsible for the implementation; enforcing; following through and carrying acts of certain customs practices and policies which resulted in the illegal search, illegal arrest and abuse of force as to the plaintiff.

84. Said customs, practices and policies were in violation of the US and NYS Constitution 4th, 8th and the 14th Amendment 42 USCA 1983 and 42 USCA 1985(3) in how they applied to the plaintiff.

85. As a result the plaintiff was injured all to her damage of ONE MILLION (\$1,000,000.00) DOLLARS.

AS AND FOR THE NINTH CAUSE OF ACTION

86. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "85" as if fully set forth herein.

87. The plaintiff was arrested without due process of law and were arrested by the defendant, its employee(s) and agents beyond the limits of their lawful authority but the defendant(s) were using their apparent authority.

88. The plaintiff was arrested without probable cause or a reasonable belief that a criminal offense was being committed.

89. It was unreasonable for the defendant(s), its employee(s) and agents to believe that any crime was being committed by the plaintiff.

90. During the cause of the alleged valid arrest, the plaintiff was subjected to excessive and undue force.

91. Based upon the circumstances that existed, it was unreasonable and outrages of the defendant(s), its agents and employee(s) to have used the force they did on the plaintiff.

92. Said acts were in violation of the US and NYS Constitutions 4th, 8th and 14th Amendment and 42 USCA 1983 and 42 USCA 1985 (3).

93. The officers involved in the arrest were authorized by their superiors.

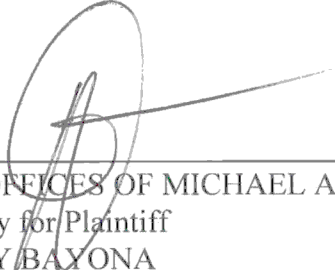
94. These superior officers authorized, approved and knowingly acquiesced in the arresting officer(s) above conduct towards the plaintiffs which they knew or reasonably should have known would result in a violation of plaintiff's constitutional rights as outlined above.

95. Said unlawful arrest and excessive and undue force resulted in the Plaintiff being injured all to her damage of ONE MILLION (\$1,000,000.00) DOLLARS.

96. The above acts exceed the jurisdictional limits of the lower Courts.

WHEREFORE, the plaintiff demands judgment against the defendants in the First Cause of Action in an amount of ONE MILLION (\$1,000,000.00) DOLLARS, in the Second Cause of Action in the sum of ONE MILLION (\$1,000,000.00) DOLLARS, in the Third Cause of Action in the sum of ONE MILLION (\$1,000,000.00) DOLLARS, in the Fourth Cause of Action in the sum of ONE MILLION (\$1,000,000.00) DOLLARS, in the Fifth Cause of Action in the sum of ONE MILLION (\$1,000,000.00) DOLLARS, in the Sixth Cause of Action in the sum of ONE MILLION (\$1,000,000.00) DOLLARS, in the Seventh Cause of Action in the sum of ONE MILLION (\$1,000,000.00) DOLLARS, in the Eighth Cause of Action in the sum of ONE MILLION (\$1,000,000.00) DOLLARS; in the Ninth Cause of Action in the sum of ONE MILLION (\$1,000,000.00) DOLLARS; together with costs and disbursements of this action.

Dated: Queens, New York
December 7, 2023



LAW OFFICES OF MICHAEL A. CERVINI
Attorney for Plaintiff
NANCY BAYONA
33-12 86th Street
Jackson Heights, NY 11372
(718) 779-8910

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Defendants.

SUMMONS and COMPLAINT

 **LAW OFFICES**
MICHAEL A. CERVINI

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Jackson Heights, New York 11372
(718) 779-8910